

| # | Case Name                                                                                                                   | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
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| 1 | <p data-bbox="175 134 378 161"><b>25-01510790</b></p> <p data-bbox="175 197 509 260"><b>16 Waves End, LLC vs. Hwang</b></p> | <p data-bbox="557 134 971 161"><b>Motion for Protective Order</b></p> <p data-bbox="557 197 1479 228">Plaintiff 16 Waves End, LLC’s motion for protective order is DENIED.</p> <p data-bbox="557 273 764 304"><b>Legal standard</b></p> <p data-bbox="557 348 1479 525">Courts may issue a protective order including a direction that the requested discovery need not be answered or produced. (Code Civ. Proc., § 2030.090, subd. (b)(1) (interrogatories); § 2031.060, subd. (b)(1) (requests for production); § 2033.080, subd. (b)(1) (requests for admission).)</p> <p data-bbox="557 569 1479 892">The court shall also limit the scope of discovery if it determines the burden, expense, or intrusiveness of the discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence (Code Civ. Proc., § 2017.020, subd. (a).) The court may make this determination pursuant to a motion for protective order. A motion for a protective order shall be accompanied by a meet and confer declaration under section 2016.040 showing a reasonable and good faith attempt to informally resolve the issues presented by the motion. (Code Civ. Proc., §§ 2030.090; 2031.060; 2033.080; 2017.020.)</p> <p data-bbox="557 936 802 968"><b>Discovery at issue</b></p> <p data-bbox="557 1012 1479 1255">On 2/2/25, Defendants served written discovery on Plaintiff including Requests for Production of Documents, Requests for Admission, and Form Interrogatories. (Katofsky Decl., ¶ 3, Ex. A, B, C.) Specifically, Defendants served 82 Requests for Production of Documents, 100 Requests for Admissions, and Form Interrogatories, including Form Interrogatory Number 17.1 regarding responses to the Requests for Admission.</p> <p data-bbox="557 1299 1479 1476">On 2/10/26, counsel for Plaintiff sent a meet and confer letter to Defendants’ counsel regarding the discovery. (Katofsky Decl., ¶ 4, Ex. D.) Counsel for the parties participated in a further meet and confer telephone call and an email exchange but were unable to reach a resolution. (Katofsky Decl., ¶¶ 5, 6, Ex. E.)</p> <p data-bbox="557 1520 1479 1732">Plaintiff contends the requests for production are overly broad as they request documents supporting allegations in the complaint. Specifically, requests 1 through 43 request Plaintiff produce documents supporting contentions made in specific paragraphs of the complaint. Plaintiff further contends the requests for admission are an improper attempt to determine the merits of the case.</p> <p data-bbox="557 1776 1479 1950">Plaintiff seeks a protective order that includes the direction Plaintiff “is not required to answer or otherwise respond” to <i>any</i> of Defendants’ discovery. (Ntc. of Mtn. at 2:3-8; Mtn. at 3:12-18.) Plaintiff does not sufficiently address, however, how the grounds set forth for its request apply to all the discovery requests at issue.</p> |

For example, Defendants' request for admission numbers, 14, 15, and 16 ask, respectively:

- Admit that by written addendum dated May 31, 2024, the Crystal Cove Community Association granted Defendants a construction deadline extension.
- Admit that the Crystal Cove Community Association granted Defendants a three year extension of their construction deadline.
- Admit that Defendants' HOA-approved construction completion deadline is May 10, 2028.

(Katofsky Decl., ¶ 3, Ex. A at p. 3.)

None of these requests "seek admissions regarding the ultimate issues in the case" as Plaintiff contends. (Mtn. at 5:15-16.)

Additionally, Plaintiff has not demonstrated how *all* the propounded form interrogatories are similarly problematic, particularly where they include standard requests regarding, for example, insurance, the damages alleged, and investigations. (Form Interrogatories Numbers 4.1-4.2, 7.1-7.3, 9.1-9.2, and 12.1-12.7). (Katofsky Decl., ¶ 3, Ex. C.)

Finally, as mentioned above, Plaintiff's grounds for a protective order as to the requests for production appear to apply to requests 1 through 43, which request Plaintiff produce documents supporting contentions made in specific paragraphs of the complaint. As an initial matter, Plaintiff provides no support for its contention "[r]equests demanding all documents supporting every allegation of a complaint are routinely rejected by courts." (Mtn. at 5:4-5). Moreover, Plaintiff does not address why the requests that do not fall into this category are also subject to a protective order or are otherwise overly burdensome or intrusive.

On reply, Plaintiff requests the Court narrow or phase discovery. (Reply at 2:10-20; 6:2.) As discussed above, the relief requested by Plaintiff's Notice of Motion and Motion was, however, for an order stating Plaintiff is not required to response to *any* of Defendants' discovery. Moreover, Plaintiff has not sufficiently identified any specific way in which discovery should be narrowed or phased.

#### **Parties' request for sanctions**

The Court shall impose a monetary sanction against any party who unsuccessfully makes a motion for a protective order without substantial justification. (Code Civ. Proc., §§ 2030.090, subd. (d), 2031.060, subd. (h), and 2033.080, subd.)

The Court GRANTS Defendants' request for sanctions in the reduced amount of \$1,940.00.

The Court DENIES Plaintiff's request for sanctions in the amount of \$5,000 pursuant to Code of Civil Procedure section 128.7 as a motion for sanctions under section 128.7 "shall be made separately from other motions or requests." (Code Civ. Proc., § 128.7).